

“chocolate confectionery” means any solid or semi-solid food principally composed of chocolate or cocoa with or without the addition of fruits or nuts, and includes food made by covering, coating or embodying sugar confectionery in chocolate but does not include biscuits which have been cooked, filled or flavoured with chocolate or chocolate ice cream, or baked confectionery flavoured with chocolate;

“common name” means the name printed in bold type in these Regulations or—

- (i) where the name is not so printed, the name by which the food is generally known and which is sufficient in each particular case to indicate to the purchaser the true nature of the food; or
- (ii) where the name of the food consists of the common names of two or more of its principal ingredients, the common names of these ingredients arranged in descending order of proportion by weight;

“component” means any substance which forms part of an ingredient;

“confectionery” includes baked confectionery, chocolate confectionery and sugar confectionery;

“date mark” means any declaration by letters or figures, whether declared expressly or in code, of any date indicative of the age of a food;

“expiry date” means any date after which the manufacturer or packager of a food does not guarantee the quality or any other property of the food;

“flavouring preparation” includes any food for which a standard is prescribed or which is defined in Division 5 of the First Schedule;

“food additive” means any substance the use of which would result or is likely to result in the substance or any of its by-products becoming a part of or affecting the characteristics of a food and includes a preservative and a food colour, but does not include—

- (i) a nutritive material used, recognised or commonly sold as an article of food;
- (ii) vitamins, mineral nutrients or amino-acids;
- (iii) spices, seasonings, essential oils, oleoresins or extractives from plants;
- (iv) veterinary drugs that may be used on animals that may subsequently be consumed as food or be used to produce food;

(v) pesticides or their by-products;

(vi) materials used for packing or any substance from such materials that may have entered food packed therein;

"food colour" means those colours permitted for use in or upon food by Division 2 of the First Schedule;

"ingredient" means any substance including a food additive used in the preparation of a food and which is present in the final product;

"instant" means in relation to a food so described, that the food has been processed to such a degree that it may be converted into a state similar to that in which it is usually consumed, merely by the addition of one or more substances with which it may be easily and readily mixed;

"main panel" means that part of a label normally intended to be presented to the consumer or intended to be most conspicuous to the consumer at the time when the food to which the label relates is offered or exposed for sale;

"package" means anything in which a food is wholly or partly contained, placed, packed or enclosed for sale;

"prepackaged" means packaged or made up in advance in a package for retail sale;

"preservative" means a substance classified as such in Division 7;

"proof spirit" means proof spirit as defined in the Customs and Excise Ordinance;

"registration number" means any letters or figures or a combination of letters and figures assigned to a food factory in accordance with the provisions of these Regulations so as to identify its products;

"storage instructions" means information on the manner in which a prepackaged food should be handled and stored so that its quality, safety or properties may be retained until the expiry date, or in the event that there is no such date such information that is necessary to ensure the retention of the quality, safety or properties of the food;

"sugar confectionery" means any solid or semi-solid food, ready for human consumption, which is composed principally of sugar with or without the addition of edible oil or fats, milk products, gelatine, edible gums, nuts, fruits, natural or synthetic flavours, food additives, food colours or

preserved fruit and includes sugar-cake, sweetened liquorice and chewing gum, but does not include chocolate confectionery, sugared baked marzipan, meringues or sweetened flavoured powders which may be used in the preparation of soft drinks;

“sweetening agent” means a sugar, molasses, honey or any other carbohydrate which may be used as a sweetener;

“vending machine” means a machine one of the purposes of which is to dispense or supply a food automatically when money or money’s worth is inserted into it whether or not any further operation is required prior to its dispensing or supplying the food.

15. Any person who sells a food that is not labelled in accordance with the provisions of this Part is guilty of an offence.

16. (1) Except as otherwise provided by this Part the label of a package of food shall carry—

(a) on the main panel of the label—

- (i) the brand or trade name of the food;
- (ii) the common name of the food; and
- (iii) a correct declaration of the net contents of the package in terms of weight, volume or number in accordance with the usual practice in describing the food;

(b) on any panel except the bottom of the package—

- (i) in the case of a food which consists of more than one ingredient, a complete list of ingredients in descending order of proportion by weight or a complete list of ingredients in which the proportion or quantity of each ingredient is stated in terms of percentage;
- (ii) the name and address of the manufacturer or the person preparing the food and its country of preparation or origin as required by regulation 16(4);
- (iii) a declaration by name of any added Class II, Class III or Class IV preservative;
- (iv) a declaration of any added food colour;
- (v) a declaration of any added flavouring preparation;
- (vi) any expiry date or date mark required by these Regulations;
- (vii) any storage instructions required by these Regulations;
- (viii) any other statement which may be required to be declared or made by these Regulations;

- (e) the common name "non-alcoholic wine" shall not be applied to any food, except an unfermented grape juice sold as a sacramental wine for religious use, which, though not an alcoholic beverage resembles it;
- (f) the label of distilled spirits of liqueurs shall carry a statement of the alcoholic strength of the spirits in terms of any of the following—
 - (i) percentage of alcohol by volume;
 - (ii) degrees Gay-Lussac (°G.L.);
 - (iii) degrees proof spirit or per cent proof spirit; or
 - (iv) degrees or per cent U.S. proof;
 - (v) or in any other term authorised by the Minister;
- (g) the common names "brandy", "rum", "gin" or "vodka" shall not be applied to any alcoholic beverage the alcoholic strength of which is below seventy-five degrees proof spirit (except in the case of fruit brandy, and brandy that has been matured in a cask);
- (h) in the case of spirit compounds, a declaration of the minimum alcoholic strength in terms of percentage proof spirit shall be made on the label in a form of words such as "not less than X% proof spirit";
- (i) the word "vintage" shall not be used in connection with any wine or brandy which is not prepared by fermentation of freshly gathered grapes in the district in which they are grown; the word "vintage" may however, be used in connection with cider;
- (j) the common names referred to in subparagraphs (a) and (b) may be in a language other than English, but shall be printed in the English alphabet with accepted accent marks.

22. (1) No person shall sell food in or from a vending machine unless there is on the machine, in a position clearly visible to the purchaser, a label bearing all information regarding the food as prescribed by these Regulations, and in particular the trade name or common name of the food and the quantity thereof to be sold.

(2) Where a food that has been prepackaged is sold in or from a vending machine each package shall be labelled as prescribed by these Regulations.

(3)(a) For the purposes of regulation 16, the outer surface of any crown cork or closure on a glass bottle used for packaging carbonated beverages or liquid dairy products may be accepted as a main panel for a period not exceeding ten years after the coming into operation of the Food and Drugs (Amendment) Regulations, 1974.

(b) Any new glass bottles used for packaging carbonated beverages or liquid dairy products shall, on the expiration of one year from the coming into operation of the Food and

Drugs (Amendment) Regulations, 1974, bear clearly and legibly as a label fired on the body of the bottle, the name and address of the manufacturer and a statement of net contents as prescribed by regulation 16.

(c) Glass bottles, used for packaging international brands of carbonated beverages, which may be imported by way of a chandler's trade with ships, aircraft or hovercraft or any other means of international transport may be used for packaging such brands in Trinidad and Tobago if the Director is satisfied that the brands are international brands.

(d) A manufacturer of carbonated beverages who has changed his address may continue to use his former address on old glass bottles if the Director is informed of the new address.

23. (1) Regulation 16 does not apply to a food which is—

- (a) sold unpackaged, or in an open or uncovered package;
- (b) weighed or measured in or counted into the package in the presence of the purchaser, or weighed, measured or counted in the presence of the purchaser before being packaged;
- (c) prepackaged from bulk at the place where the food is sold by retail:

Provided that there is placed on every shelf, bin or any other place where the food is displayed in a position clearly visible to an intending purchaser a legible statement in English giving correct details of—

- (i) the common name or trade name of the food;
 - (ii) the net contents of the package;
 - (iii) the price of the unit quantity of the food as it is customarily measured; and
 - (iv) the price of the package;
- (d) a pastelle sold only in the vegetable wrapping in which it was cooked:

Provided that the name and address of the manufacturer are clearly shown on the shelf, bin or any other place where it is displayed for sale if retailed by a person other than the manufacturer.

(2) Notwithstanding regulation 16, a bulk container of a food or a food additive may bear a label containing any or all of the following—

- (a) the common name of the food;
- (b) the brand or trade name of the food;
- (c) the net contents of the bulk container;
- (d) the name and address of the manufacturer, packager, importer or wholesaler;
- (e) any batch or lot number, date mark, expiry date or registration number required by these Regulations; or
- (f) any storage instructions required by these Regulations.

(3) Notwithstanding regulation 16(1), a package containing a food additive or a mixture of food additives (other than a preparation of synthetic food colours for household use) and no other food ingredient may carry a batch number, date mark or expiry date and shall be labelled with —

- (a) the common or chemical name of the food additive and the specification to which it conforms;
- (b) the brand or trade name of the food additive;
- (c) the net contents of the package;
- (d) the name and address of the manufacturer or packager of the food additive;
- (e) any direction in English that the Director may consider necessary to ensure its safe use in accordance with the Ordinance, regulations made thereunder or with good manufacturing practice, or to prevent injury to the consumer or to persons who may use the food additive in the preparation of a food;
- (f) the name, percentage by weight and the specification of each food additive present, where there is a mixture of food additives.”;

(b) in Part III—

- (i) by inserting in their appropriate alphabetical order the following new definition—

“ “bulk package” means—

- (a) a package in which one or more duly labelled packages of a drug and its contents intended for retail are placed for the purpose of wholesale;
- (b) a package containing a drug intended to be sold by wholesale; or
- (c) a package containing a drug supplied by a wholesaler to a pharmacist or dispensary and intended to be repackaged by the retailer in smaller quantities for dispensing or retail, but does not include packing cases used in import or export for the protection of drugs.”;

- (ii) by adding immediately after regulation 33 the following new regulation 33A—

“33A. The label on the bulk package of any drug shall carry—

- (a) the proper name and standard under which the drug was manufactured; if the standard is contained in any publication listed in the Second Schedule of the Ordinance such standard shall be stated in full or by the abbreviation provided in the publication;
- (b) the common name of the drug if there is no proper name;